

Chief Engineer, 33/11 kV Quarsi, Electricity Department, Aligarh v. Jhamman Singh

High Court of Judicature at Allahabad · Single Judge · 16 September 2022 · Writ-C No. 27879 of 2022 · **Stay of PLA award on deposit; notices issued.**

HEADNOTE

On the Electricity Department's writ against a Permanent Lok Adalat award in an electricity dispute, the Allahabad High Court recorded that the matter requires consideration, issued notice, and stayed the award dated 16.07.2022 subject to deposit of the entire awarded amount within one month, half to be paid to the consumer without security and the balance placed in a nationalised-bank fixed deposit. No construction of the Electricity Act 2003 or the Electricity Supply Code 2005 was rendered.

FACTUAL SUMMARY

The Chief Engineer of the 33/11 kV Quarsi unit, Electricity Department, Aligarh, and another challenged before the Allahabad High Court a Permanent Lok Adalat award dated 16 July 2022 in P.L.A. Case No. 86 of 2020 in favour of Jhamman Singh. The licensees contended that the Electricity Act 2003 and the Electricity Supply Code 2005 prescribe a complete procedure, so the complainant had to approach the Electricity Department before the Permanent Lok Adalat, and that arguments raised before the Adalat were not considered.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory stay of Permanent Lok Adalat electricity award

HOLDING

The writ against the Permanent Lok Adalat award dated 16.07.2022 in P.L.A. Case No. 86 of 2020 is admitted for consideration. Operation of that award is stayed until further orders, provided the licensee deposits the entire awarded amount with the Permanent Lok Adalat within one month; 50% is to be paid to Jhamman Singh without security and 50% placed in a nationalised-bank fixed deposit. The Court undertook no construction of the Electricity Act 2003 or the Electricity Supply Code 2005. ¶ 1

PRINCIPLE TAGS

procedural-listing-no-construction The Court only recorded that the writ against the Permanent Lok Adalat award requires consideration, issued notice, and granted a conditional stay on deposit of the award; it did not construe the Electricity Act 2003 or the Electricity Supply Code 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE COMPLAINANT WAS REQUIRED TO INVOKE THE ELECTRICITY ACT 2003 / ELECTRICITY SUPPLY CODE 2005 INTERNAL PROCEDURE BEFORE APPROACHING THE PERMANENT LOK ADALAT

The licensees so argued; the Court only recorded that the matter requires consideration. ¶ 1

NOT DECIDED — VALIDITY OF THE PERMANENT LOK ADALAT AWARD DATED 16.07.2022 IN P.L.A. CASE NO. 86 OF 2020

The writ remains pending; the stay is interlocutory and conditional on deposit of the awarded amount. ¶ 1

